

5 Commercial Buildings

5.1 Bazaar Street

5.1.1 Permissibility

Following provisions shall be applicable for the bazaar streets proposed in the master plan. In case a bazaar street notified in master plan falls within the layouts approved or developed by the Authority the provisions of this chapter shall automatically apply on payment of prescribed fee. No separate change of layout shall be required and only the relevant corrections in the lease/sale deed shall be done.

5.1.2 Means of Access

(i) The right-of-way of the bazaar street shall be minimum 12-meters, or the width proposed in the master plan.

(ii) Commercial use on a bazaar street will be allowed on the entire depth of the plot.

5.1.3 Maximum Building Height

(i) There shall be no restriction on building height for bazaar streets. However, the maximum height of the building shall be governed by distance from the protected monument/ heritage site, airport funnel zone and other statutory restrictions.

(ii) Commercial use shall be permitted on the ground and first floors only, while residential use shall be allowed on the subsequent floors. Residential use on ground and first floor may be permitted on the request of the plot owner.

5.1.4 Ground Coverage and FAR

(i) Maximum ground coverage after ensuring minimum setbacks and open space requirements, if any, shall be permissible on plots in the bazaar street.

(ii) Purchasable and premium purchasable FAR shall be applicable as per the requirements of Chapter-9. Basis approach road width, the maximum permissible FAR (including Base FAR) for bazaar streets in built-up areas and the non-built-up areas shall be as follows:

FAR Commercial Buildings	BFAR	Road Width (Upto12m)			Road Width (>12 -24m)			Road Width (>24 - 45m)			Road Width (>45m)		
		PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
Built-up Area													
Bazaar Street	1.5	NA	NA	1.5	0.75	0.75	3.0	1.5	2.25	5.25	1.5	UR	UR
Non-Built-up Area													
Bazaar Street	1.75	NA	NA	1.75	0.9	0.9	3.6	1.75	2.6	6.1	1.75	UR	UR

Note-1: BFAR – Base FAR, PFAR – Purchasable FAR, PPFAR – Premium Purchasable FAR, MFAR – Maximum Permissible FAR which includes Base FAR, UR – Unrestricted FAR.

Note-2: In green building, additional FAR over and above maximum permissible FAR shall be provided as per Chapter 9.3 of the building byelaws.

5.1.5 Minimum Setback

Based on the proposed road width, the minimum front setback for plots on the bazaar street shall be as follows:

Proposed width of road (metres)	Minimum open space in front (metres)
12	3.0
18	4.5
24	6.0
30	6.0
36	7.5
45	7.5
76	9.0

5.1.6 Parking Requirement

Parking requirements for bazaar street shall be as per *paragraph 3.3.4* of the building byelaws.

5.1.7 Basement

The permissibility of basement in bazaar street plots shall be as per *paragraph 3.3.3* of the building byelaws.

5.2 Shops, Commercial Complex and Shopping Malls

5.2.1 Permission

The construction of commercial establishments viz., shops, commercial complexes and shopping malls shall be permitted according to the masterplan/zoning regulations.

5.2.2 Minimum Plot Size

The minimum area of the plot for construction of commercial establishments viz., shops, commercial complexes and shopping malls shall be as follows.

	Commercial Establishments	Min. Plot Area (sqm)
1	Retails Shops	>10 to 100
2	Convenient Shopping / Commercial Units	=>100 to 300
2	Commercial Complex (including other commercial)	More than 300 - 3000
3	Shopping malls	More than 3000

5.2.3 Minimum Road Width

The minimum width of existing approach road to plots for construction of commercial establishments viz., shops, commercial complexes and shopping malls shall be as follows.

	Commercial Facilities	Min. Road Width (m)
1	Retail Shops	6 (built up) 9 (non-built up)
2	Convenience Shopping /Commercial Units	12

3	Commercial Complex	12
4	Shopping malls	18
5	Other Commercial (plot size >300 sqm)	12

5.2.4 Maximum Building Height

There shall be no restriction on building height for commercial buildings i.e. shops, commercial complex, shopping malls. However, the maximum height of the building shall be governed by distance from the protected monument/ heritage site, airport funnel zone and other statutory restrictions.

5.2.5 Ground Coverage and FAR

(i) Maximum ground coverage after ensuring minimum setbacks and open space requirements, if any, shall be permissible on plots for commercial establishments i.e. shops, commercial complex, shopping malls.

(ii) Purchasable and premium purchasable FAR shall be applicable as per the requirements of Chapter 9. Basis approach road width, the maximum permissible FAR (including Base FAR) for bazaar streets in built-up areas and the non-built-up areas shall be as follows:

FAR	BFAR	Road Width (Upto12m)			Road Width (>12 -24m)			Road Width (>24 - 45m)			Road Width (>45m)		
		PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
Commercial Buildings													
Built-up Area													
Comm. Units up to100 sqm	1.5	0.3	0.3	2.1	0.75	0.75	3.0	1.5	2.25	5.25	1.5	UR	UR
Comm. Units >100 sqm	1.5	NA	NA	1.5	0.75	0.75	3.0	1.5	2.25	5.25	1.5	UR	UR
Shopping malls	2.0	NA	NA	2.0	1.0	1.0	4.0	2.0	3.0	7.0	2.0	UR	UR
Non-Built-up Area													
Commercial Units* up to100 sqm	1.75	0.35	0.35	2.45	0.9	0.9	3.6	1.75	2.6	6.1	1.75	UR	UR
Commercial Units* >100 sqm	1.75	NA	NA	1.75	0.9	0.9	3.6	1.75	2.6	6.1	1.75	UR	UR
Shopping malls	3.0	NA	NA	3.0	1.5	1.5	6	3.0	4.5	10.5	3.0	UR	UR

*Commercial Units include Shops / Convenience Shopping / other commercial complexes etc.

Note-1: BFAR – Base FAR, PFAR – Purchasable FAR, PPFAR – Premium Purchasable FAR, MFAR – Maximum Permissible FAR which includes Base FAR, UR – Unrestricted FAR.

Note-2: In green building, additional FAR over and above maximum permissible FAR shall be provided as per *paragraph 9.3* of the building byelaws.

(iii) Construction of skylighted Atrium shall be allowed in the shopping malls. Such atriums shall not be counted in FAR calculations. No permanent construction shall be allowed within the atrium space rather it shall be used for circulation. Temporary kiosks shall be permitted in maximum 20% of the

atrium area such that they do not hinder circulation area below atrium. area. The entry/ exits, passage areas within the shopping mall shall be free from any obstructions.

5.2.6 Minimum Setback

Minimum setbacks for commercial establishments viz., shops, commercial complexes, and shopping malls shall be as per paragraph 3.2.4 of the building byelaws.

5.2.7 Parking Requirements

Parking requirements for commercial establishments viz., shops, commercial complexes and shopping malls shall be as per paragraph 3.3.4 of the building byelaws.

5.2.8 Basement

The permissibility of basement in commercial establishments viz., shops, commercial complexes and shopping malls shall be as per paragraph 3.3.3 of the building byelaws.

5.3 Hotels

5.3.1 Permissibility

Permission for construction of hotels shall be as per the provisions of Master Plan/ Zoning Regulations.

5.3.2 Minimum Plot Size

The minimum number of rooms in hotel building shall be six (6). Up to 20 rooms there shall be no restriction on the minimum plot area for construction of hotels. For construction of hotels with more than 20 rooms, the minimum plot area shall be 500 sqm.

5.3.3 Means of Access

In residential areas, the minimum width of the approach road for construction of hotels up to 20 rooms shall be 9 m. For hotels more than 20 rooms, the width of approach road shall be 12 m.

5.3.4 Maximum Building Height

There is no restriction on the maximum building height. However, the maximum height of the building shall be governed by distance from the protected monument/heritage site, airport funnel zone and other statutory restrictions.

5.3.5 Ground coverage and FAR.

(i) Maximum ground coverage after ensuring minimum setbacks and open space requirements, if any, shall be permissible.

(ii) Purchasable and premium purchasable FAR shall be applicable as per the requirements of Chapter 9. Basis approach road width, the maximum permissible FAR (including Base FAR) for hotels in built-up areas and the non-built-up areas shall be as follows:

FAR Hotels	BFAR	Road Width (Upto12m)			Road Width (>12 -24m)			Road Width (>24 - 45m)			Road Width (>45m)		
		PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
Built-up Area													
Hotels	2.0	NA	NA	2.0	1.0	1.0	4.0	2.0	3.0	7.0	2.0	UR	UR

Hotels	FAR	Road Width (Upto12m)			Road Width (>12 -24m)			Road Width (>24 -45m)			Road Width (>45m)		
	BFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
Non-Built-up Area													
Hotels	2.5	NA	NA	2.5	1.25	1.25	5.0	2.5	3.75	8.75	2.5	UR	UR

Note-1: BFAR – Base FAR, PFAR – Purchasable FAR, PPFAR – Premium Purchasable FAR, MFAR – Maximum Permissible FAR which includes Base FAR, UR – Unrestricted FAR.

Note-2: In green building, additional FAR over and above maximum permissible FAR shall be provided as per Chapter 9.3 of the building byelaws.

5.3.6 Minimum Setback

The minimum setback requirement for hotel buildings shall be as per *paragraph 3.2.4* of the building byelaw.

5.3.7 Parking Requirements

Parking requirements for hotel buildings shall be as per *paragraph 3.3.4* of the building byelaws.

5.3.8 Basement

The permissibility of basement in hotel buildings shall be as per *paragraph 3.3.3* of the building byelaws.

5.3.9 Provisions for Hotels in Heritage Buildings

- As per UP Tourism Policy 2022, Heritage hotels will be defined as per the Ministry of Tourism, Government of India guidelines according to which the heritage value old buildings/ forts/havelis/kothis/castles constructed prior to 1950, on being operated as hotels will be included in the category of heritage hotels. Heritage hotels can be of any size and dimension. Heritage Homestay refers to those units wherein the tourist resides with the owner or any of his/her family member in the usual place of residence which must be a heritage building.
- In buildings declared as heritage buildings by Tourism Department, adaptive reuse of existing residential/ non-residential buildings as hotels shall be permitted by the Authority. The provisions related to means of access, ground coverage, FAR, setbacks, means of access, parking etc. may be relaxed by the Authority on the recommendation of the Heritage Conservation Committee.
- FAR incentive – Subject to the approval of competent authority, FAR incentives may be provided for heritage building owners who undertake restoration and conservation work, promoting preservation of historic structures. Higher FAR for heritage buildings being adaptively reused for compatible purposes, such as hotels, restaurants, or museums, to encourage their economic viability. Heritage features such as ornate facades, balconies, or courtyards, may be exempt from FAR calculations, allowing owners to preserve these essential elements. Heritage building owners incorporating green building features such as solar panels, rainwater harvesting, or energy efficient systems shall be offered FAR bonus of 0.25 or 0.50 over and above base FAR.
- Road Width - Heritage buildings, proposed to be used as heritage hotels, shall be permissible on existing road width of atleast 5 meters in areas which have traditionally considered to be religious and spiritual hotspots wherein most of the roads are narrow. In case of non-heritage areas, minimum width of existing approach road shall be 7.5 meters.
- Parking - Heritage buildings proposed to be used as heritage hotels, situated on narrow roads in

urban areas which arrange for dedicated alternative parking on wider roads (more than 12-m) and provide for park and ride system from Hotel to parking place shall be permitted.

- (vi) Commercial Use -. All heritage buildings, those are residential/institutional, heritage tourism units can commercially convert a maximum 1000 square meters or 10 percent of plinth area of the existing heritage building, whichever is less for purposes such as retail shops or souvenir shops.
- (vii) Setback relaxations - The development authority may consider relaxation in the norms related to setbacks in high density areas. Towards facilitating the restoration and reuse of heritage buildings, the development authority may provide relaxations in setback and parking requirements for heritage buildings on case to case basis, acknowledging the unique challenges posed by their location and design.
- (viii) The composition of the Heritage Conservation Committee shall be as follows:
 - a. Chairman, Vice-Chairman, Development Authority
 - b. Member – Commissioner, Municipal Corporation
 - c. Member – District level officer, Tourism Department
 - d. Member – District level officer of Culture Department
 - e. Member – Representative, Fire Department
 - f. Member – Representative, O/o Chief Town and Country Planner
 - g. Member Secretary – Chief Town Planner/ In-charge, Planning, Dev. Authority.
 - h. Any other subject matter expert nominated by the Chairman.

5.4 Single Screen Cinema, Miniplex and Multiplex

5.4.1 Permissibility

Permissions for construction of Single Screen Cinema, Miniplex and Multiplex shall be permitted as per master plan zoning regulations. Under multiplex, cinema halls, commercial theatres and other entertainment facilities shall be allowed.

5.4.2 Minimum Plot Size

Minimum plot size for single screen cinema, miniplex, and multiplex shall be as follows.

Type of Building	Minimum Plot Size (sqm)
Single Screen Cinema	500
Miniplex (2 screens)	700
Multiplex	3000

The above-mentioned plot size for multiplex shall not apply if multiplexes are proposed on the same land after demolishing existing cinema halls or in the sites identified for multiplexes in the sector plan/lay-out plan which is approved by the competent level, i.e., the existing area of the plot shall be valid.

5.4.3 Means of Access

The minimum road width for proposed site/plot for construction of single screen cinema, miniplex and multiplex shall be as follows.

Type of Building	Minimum Road width (m)
Single Screen Cinema	12
Miniplex (2 screens)	12
Multiplex	18

The above restriction shall not apply if a multiplex is proposed on the same land after demolishing ~~the~~ place by demolishing existing cinema halls or in place of the sites marked for multiplex in the master plan/zonal plan/sector plan/lay-out plan which is approved by the competent authority.

5.4.4 Ground Coverage and FAR

The maximum ground coverage after ensuring the minimum setbacks may be utilized. The maximum permissible FAR (including additional FAR available on purchasable basis) for multiplexes in commercial areas shall be permissible as follows:

Cinema, Miniplex, Multiplex	FAR	Road Width (Upto12m)			Road Width (>12 -24m)			Road Width (>24 - 45m)			Road Width (>45m)		
	BFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR	PFAR	PPFAR	MFAR
Built-up Area													
Cinema, Miniplex, Multiplex	2.0	NA	NA	NA	1.0	1.0	4.0	2.0	3.0	7.0	2.0	UR	UR
Non-Built-up Area													
Cinema, Miniplex	2.0	NA	NA	NA	1.0	1.0	4.0	2.0	3.0	7.0	2.0	UR	UR
Multiplex	3.0	NA	NA	NA	1.5	1.5	6.0	3.0	4.5	10.5	3.0	UR	UR

Note-1: BFAR – Base FAR, PFAR – Purchasable FAR, PPFAR – Premium Purchasable FAR, MFAR – Maximum Permissible FAR which includes Base FAR, UR – Unrestricted FAR.

Note-2: In green building, additional FAR over and above maximum permissible FAR shall be provided as per Chapter 9.3 of the building byelaws.

5.4.5 Ratio of activities

- Provision for minimum two cinema screens under miniplex and multiplex shall be mandatory.
- In case of construction of cinema and miniplex in non-commercial areas, 20 percent floor area shall be utilized for commercial and other entertainment facilities.
- In case of construction of multiplex in non-commercial areas, construction of cinema hall shall be permitted on minimum of 30 percent of the total floor area and the remaining 70 percent shall be utilized for commercial and other entertainment facilities.
- In case of construction of multiplex in commercial areas, then the above restriction shall not apply.

5.4.6 Minimum Setback

- Minimum setbacks for cinema, miniplex and multiplex shall be per *paragraph 3.2.4* of the building byelaws.
- For multiplex buildings, provision of adequate "circulation space" for the vehicles to move from parking lot towards the 18-meters-and-wider access road shall be mandatory.

5.4.7 Parking Requirements

Parking requirements for cinema, miniplex and multiplex shall be as per *paragraph 3.3.4* of the building byelaws.

5.4.8 Basement

- The provisions for basement for cinema, miniplex and multiplex shall be as per *paragraph 3.3.3* of the building byelaws.

(ii) Construction of a screen in the basement shall not be permitted.

5.4.9 Other requirements

Planning, designing and firefighting arrangements of the cinema hall shall be ensured as per the relevant provisions of Uttar Pradesh Cinematograph Rules, 1951 and National Building Code. In a multiplex, essential services like drinking water system, toilets, canteen, etc. can be provisioned in common as per the prescribed standards.

5.4.10 Redevelopment of existing cinema halls

5.4.10.1. The land use of the cinema plot or existing cinema hall planned before the creation of the authority, which is part of the layout plan approved at the competent level, shall be considered as cinema hall (commercial), even if their land use is shown otherwise in the master plan.

5.4.10.2. In case the land use level of the plots/picture halls planned for the purpose of the cinema hall is not determined under the master plan, it shall be considered as commercial.

5.4.10.3. Under the layout plan approved by the competent authority, since the land use of the plot planned for the cinema hall/existing cinema hall is commercial, the action of land use change shall not be necessary, hence land use change fee shall not be payable.

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5.4.10.4. The ground coverage and FAR allowed for cinema hall/multiplex shall be as per the terms and conditions of allotment/lease. If there is no above provision in the lease, then as per the provisions of Multiplex as per these byelaws shall be permissible. Purchasable FAR shall be allowed as per rules over and above the permissible FAR as per the terms of allotment/lease or the permissible FAR as per building construction and development byelaws, as the case may be.

5.5 Petrol Pump/Filling Station (CNG/PNG/EV)

5.5.1 Permissibility

Petrol pump/filling station shall be permitted as per master plan zoning regulations.

5.5.2 Minimum Plot Size

The minimum size of the plot for petrol pump/filling station (covering CNG/PNG/EV) is 16m x 14m if it is exclusively for 2-wheelers and 3-wheeler vehicles and 30m x 17m for all vehicles. The minimum size of plot for petrol pump/filling station-cum-service station is 36m X 30 m.

Note: Any other plot size prescribed by the oil companies (in the letter of intent) shall prevail over the above provision.

5.5.3 Means of Access

Petrol pump/ filling station will be located on a minimum 12-meter-wide road in the built-up area and a minimum 18-meter-wide road in the non-built-up area. In case the petrol pump/filling station exclusively for 2-wheeler/ 3-wheeler vehicles, the approach shall be on a minimum of 9-meter-wide roads.

5.5.4 Maximum Building Height

The maximum permissible building height for petrol pump / filling station shall be 6 meters.

5.5.5 Ground Coverage, FAR and Setbacks

The maximum ground coverage and maximum permissible FAR shall be as follows:

Petrol Pump	Ground Coverage	FAR	Front setback
(a) Petrol Pump/ Filling Station (CNG/PNG/EV)	Built-up area: 10%	Built-up area: 0.1	3-m
	Non-Built-up area: 10%	Non-Built-up area: 0.15	
(b) Filling Station cum service station (CNG/PNG/EV)	Built-up area: 20%	Built-up area: 0.2	6-m
	Non-Built-up area: 10%	Non-Built-up area: 0.15	

5.5.6 Parking Requirements

Parking provision to the extent of 80 square meters shall be provided.

5.5.7 Kisan Seva Kendra

Depending upon the demand and preference of the local customers, Kisan Seva Kendras (KSKs) provide allied facilities like Micro ATM, Convenience Store, Fertilizers/Pesticides, farm equipment's etc., while also providing services of petrol filling stations.

Minimum plot size for retail outlet for the purpose of KSKs shall be 20m x 20m or plot size as prescribed by the related companies.

5.5.8 Other requirements

- (i). The width of the entry and exit routes of each petrol filling station / petrol filling station-cum-service station shall be minimum 9 meters.
- (ii). Provision of buffer strip is necessary between the main road and the petrol filling station/petrol filling station-cum-service station, which shall be at least 12 meters long and 3 meters wide and shall be in addition to the setback.
- (iii). Firefighting provisions shall have to be ensured as per rules.
- (iv). Other provisions of Petroleum and Explosives Act shall be applicable.
- (v). Petrol pump/filling station shall be permissible at a distance of 30m from road intersection/ traffic junction after ensuring efficient movement of vehicles by obtaining requisite No-objection Certificate.

5.6 LPG Gas Godown

5.6.1 Permissibility

LPG gas godown shall be permitted as per the master plan zoning regulations. The final approval shall be given as per requirements of Petroleum and Explosives Safety Organization (PESO).

5.6.2 Minimum Plot Size

The minimum plot size for LPG storage / Gas Godown shall be 26mx20m (520 sqm).

Note: Any other plot size prescribed by the concerned PSUs shall prevail over the above provision.

5.6.3 Means of Access

Minimum width of existing access road to the LPG Gas Godown site shall be 18 meters.

5.6.4 Building height

Minimum height of the gas godown shall be 6-meters and no construction shall be allowed above the gas godown.

5.6.5 Ground Coverage and FAR

The maximum permissible FAR shall be 0.30, which can include construction of office for use of gas godown and a guard room of maximum area of 1.6 square meters.

5.6.6 Minimum Setback

Minimum front setback of 6-meter and 3-meter on other sides of the building shall be ensured for the gas godown building.

5.6.7 Parking Requirements

Parking requirement for LPG storage and Gas Godown shall be 1 ECS / 100 sqm of Built-up Area.

5.6.8 Ventilation

Minimum 10 percent of the floor area shall be in the form of windows and ventilators, etc., for ventilation.

5.6.9 Other requirements

- (i) Gas godowns shall be constructed of non-inflammable materials.
- (ii) For the construction of a gas godown, no objection certificate shall be obtained from the fire department and the Chief Controller of Explosives.